

Mark R. Lee

markrichardlee@gmail.com ‡ (619) 260-2949 ‡ San Diego, California

Current Employment

Professor-of-Practice, University of San Diego School of Law

J. Lawrence Irving Senior Distinguished Teaching Fellow (2011-2019)

- Subjects: Corporations, Agency, Partnership, and the LLC, Securities Regulation, , Antitrust, Law and Economics, Criminal Law

Arbitrator

- American Arbitration Association; Financial Industry Regulatory Authority

Consulting Attorney/Expert Witness

- Corporate, Business Organization, Securities, and Antitrust matters

Past Employment

Visiting Professor of Law:

United States: Colorado, Georgetown, Gonzaga, St. Louis, Seattle, Washington College of Law (American University), Washington University in St. Louis

Europe: Katholieke Universiteit Brussel, Max Planck Institute for Foreign & Private International Law, University of Erlangen-Nürnberg, University of Salerno, University of Warwick

Professor of Law, Southern Illinois University (1977–2011)

Instructor, University of Miami School of Law (1976–1977)

Attorney, U.S. Department of Justice, Antitrust Division, Appellate Section (1975–76)

Assistant Attorney General of Texas (1974–1975)

Selected Honors and Awards

Fulbright Senior Scholar Award (1992)

Belgian National Fund for Scientific Research Award (1992) (with Elaine D. Edelman)

Research Stipendium, Max Planck Institute for Foreign and Private International Law (1986)

Published Books

ORGANIZING CORPORATE AND OTHER BUSINESS ENTERPRISES, 6th ed. (LEXIS, 2000; updated annually) (with L. Gross)

ANTITRUST LAW AND LOCAL GOVERNMENT (Greenwood Press, 1985).

Selected Articles, Papers, and Invited Lectures

The Regulatory Ratchet: Why Regulation Begets Regulation—Fatal Flaw in the Market for Health Care, 87 U. CIN. L. REV. 723 (2019) Available at:

<https://scholarship.law.uc.edu/uclr/vol87/iss3/3>

“Regulating ‘Newly’ Rivalrous Industries,” 21st Annual Rate & Regulatory Symposium (1995).

Oil Price Shocks, Antitrust and Politics: The Supply of Petroleum and the Demand for Regulation, 15 S. ILL. U.L.J. 529 (1991).

“The Iraqi Crisis and Regulation of the Marketplace,” American Society of International Law Midwest Regional Conference (1990).

“Law and Economics,” Erasmus Seminar on Legal Theory (an abstract appears in *Revue Internationale de Theorie de Droit et de Sociologie Juridique*, Issue No. 2, 1992).

Antitrust and Commercial Arbitration, 62 ST. JOHN'S L. REV. 1 (1987).

Local Government Practices and the Antitrust Merits, 39 U. MIAMI L. REV. 589 (1985) Available at: <https://repository.law.miami.edu/umlr/vol39/iss4/2>.

Antitrust: Market Definition, The Section Two Offenses and Literalism, 57 CHI.-KENT L. REV. 25 (1981) Available at: <https://scholarship.kentlaw.iit.edu/cklawreview/vol57/iss1/3>.

Economic Regulation of Business: The 7th Circuit's Non-Economic Approach, 56 CHI.-KENT L. REV. 205 (1980) Available at: <https://scholarship.kentlaw.iit.edu/cklawreview/vol56/iss1/9>.

Antitrust: A Collage of Vertical Territorial Restraints, Tying and Monopoly Misuse, "Arbitrability, and the General Dynamics Defense, 55 CHI.-KENT L. REV. 1 (1979) Available at: <https://scholarship.kentlaw.iit.edu/cgi/viewcontent.cgi?article=2304&context=cklawreview>.

Right to Effective Counsel: A Judicial Heuristic, 2 AM. J. CRIM. L. 277 (1974) Available at: <https://heinonline.org/HOL/LandingPage?handle=hein.journals/ajcl2&div=23&id=&page=>.

Professional Activities and Affiliations

Board of Advisors, University of San Diego Entrepreneurship Clinic, 2001—present

Illinois Blue Ribbon Telecommunications Task Force (Member), 1990–1991

Illinois Sunset Task Force on Utility Regulation Reform (Member), 1982–1984

Bar Memberships: State Bar of Texas (inactive); Bars of the U.S. Courts of Appeal for the 2d, 4th, 7th and District of Columbia Circuits

Education

Law School: University of Texas; J.D. with High Honors 1974

Rank (est.): 5/500; Chancellors; Order of the Coif; Phi Kappa Phi; Tex. Law Rev. (1972-73)

Undergraduate: Yale University; B.A., 1971

Advanced Training:

Economics Institute for Law Professors

Emory University Law & Economics Center, 1982

Invited Lectures

Aberystwyth University, Wales (1982)

Lancaster University, England (1982)

Newcastle University, England (1982)

University of Innsbruck, Austria (1986)

University of Passau, Germany (1992)

University of Macerata, Italy (2004)

Second University of Naples, Italy (2004)

Personal

Family Status: married with three children